



Appeal Decision

Site visit made on 17 August 2026

by Chris Couper BA (Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 17 September 2026

Appeal Ref: 6010401

Windmill Farmhouse, Carlton Road, Wilbarston, North Northamptonshire LE16 8QE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Brad Giles (Giles Property Group) against the decision of North Northamptonshire Council.
 - The application Ref is 25/01457/FUL.
 - The development proposed is the demolition of agricultural buildings and the erection of two dwellings with associated access and landscaping.
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Decision

1. The appeal is dismissed.

Procedural Matter

2. In August 2026, after the Council issued its decision, a new version of the National Planning Policy Framework was published ('the Framework'). I gave the principal parties an opportunity to comment on the Framework, and I have taken their representations into account in my decision.

Main Issue

3. The main issue is whether or not this is a suitable location for the proposal, having regard to policies which direct housing to existing settlements and the site's accessibility to services and amenities; and to the scheme's design and its impact on the character and appearance of the area.

Reasons

4. Considered collectively, Policies 11, 13 and 29 of the North Northamptonshire Joint Core Strategy 2011-2031 (2016) ('NNCS') seek to direct most development to urban areas and settlements and to protect the open countryside. NNCS Policy 13 allows some exceptions to that spatial strategy, and states in broad terms that whilst permission will not normally be granted for new built residential development away from established settlements, individual dwellings of exceptional quality or innovative design, or dwellings for rural workers, may be allowed.
5. Policy S5 of the Framework also only permits certain forms of development outside of settlements. The appellant acknowledges that the proposal does not fall within any of the listed categories at Policy S5(1). Policy S5(4) continues that proposals which do not fall within one of those categories should only be approved in exceptional circumstances, where the benefits of the proposal would substantially

outweigh the adverse effects, including to the character of the countryside and in relation to promoting sustainable patterns of movement.

6. The appeal site lies some distance beyond the Wilbarston settlement boundary, with fields and open areas in between. Notwithstanding the presence of Windmill Farm a little distance to the west and Windmill Barns to the east, the site is not closely associated with that settlement. It lies in the open countryside. Although Wilbarston has a limited range of services, there is no roadside footpath or street lighting between the site and the village, and the future occupants of the proposed dwellings would be largely reliant on the private car to meet their day-to-day needs.
7. The scheme would involve the demolition of two vacant steel-framed agricultural structures, one a Dutch barn with a domed roof, and the other a taller structure with a ridge. Although of no architectural merit, they are typical of agricultural buildings in the countryside, and they do not therefore appear incongruous in the context of the area. These structures would be replaced by two detached dwellings, which would be sited on the same footprints, and which would utilise the existing access point from Carlton Road.
8. The appellant contends that the proposed dwellings would be of a similar design to Windmill Barns. However, although the scheme draws from a similar palette of facing materials, the proportions of the proposed buildings would be significantly different, and I agree with the views expressed by interested parties that their substantial size, their width and extensive shallow pitched roof would give them an awkward and bulky form, such that they would fail to resemble those traditional agricultural buildings that they purport to emulate. The scheme would not be of good design quality, and it would fail to respond to its local context.
9. Moreover, the proposed dwellings would be broadly similar to each other in terms of their scale, design, form and materials; they would be located in close proximity to one another, with tall timber fencing on some boundaries; and with double garages with pyramidal roofs and extensive tarmacked areas between them and the road. That layout and design would give the scheme a markedly suburban appearance, which would be at odds with the site's rural setting.
10. The site slopes down from Carlton Road, where there is a boundary hedgerow. As a result, the scheme would be screened, to some degree, from the public realm. However, it would still be seen through the gap at the access point and, notwithstanding the use of planning conditions requiring the submission of a landscaping scheme, I cannot be certain that the screening affect would be similar in different seasons and in the future compared to what I observed at the time of my visit.
11. The appellant has drawn my attention to an appeal decision at Chapel Farm¹, where an Inspector found that the erection of five dwellings following the demolition of agricultural buildings would cause only limited harm to the area's character and appearance due to screening. However, I have few details of that scheme in order to make any meaningful comparison and, unlike here, that Inspector did not find harm as a result of the scheme's layout and design.
12. For the above reasons, the scheme would conflict with the NNCS spatial strategy, and it would cause significant harm to the character and appearance of the area. It

¹ APP/F2415/W/24/3347442

would therefore conflict with NNCS Policies 11, 13 and 29; along with its Policy 8 which requires development to respond to the site's context and local character; and with Policy 1 which supports sustainable development that complies with other relevant NNCS policies. It would also conflict with Framework Policy DP3 which seeks well-designed, visually attractive development, which responds to its context, and integrates with and enhances its surroundings.

13. By reference to a previously submitted Structural Engineers Report, the Council describes the existing structures on the site as dating from the 1960s. Although of a functional appearance, they are clearly of some age, and I see no cogent reason why they may not be considered 'historic farm buildings' for the purposes of Policy RS5 of the Kettering Site Specific Part 2 Local Plan (2021). Given that the scheme would involve their replacement, and it has not been demonstrated that their retention is not possible, the scheme also conflicts with that policy.

Other considerations

14. The appellant points out that the Dutch barn benefits from prior approval for its conversion into two dwellings under Class Q of Part 3 to Schedule 2 of the Town and Country Planning (General Permitted Development) (England) Order 2015 (as amended) ('the PAS')². I do not doubt that the PAS has a real prospect of implementation. It constitutes a lawful fallback, to which I attribute significant weight.
15. However, whilst the PAS would result in residential development of two dwellings on part of the appeal site, and those occupants would be equally dependent on the private car compared to this scheme, it would involve the re-use of an existing structure. That structure is of a form, design and appearance typical of rural countryside locations. Moreover, the PAS has a very tightly drawn residential curtilage, with a small area for cars to park discretely to the rear of the building.
16. In contrast, the scheme before me involves the erection of two entirely new buildings, one of which would be taller with a greater visual impact than the Dutch barn, and which I have found would have an incongruous design. The proposed dwellings would also be on much larger plots, and with larger areas of hardstanding and fencing.
17. I recognise that this scheme would involve a comprehensive redevelopment of the whole site, including the replacement of both structures, which would resolve a rather awkward juxtaposition in the PAS between the converted barn and the retained building. However, considered as a whole, and for the above reasons, compared to the PAS, the scheme before me would have a significantly more harmful impact on the character and appearance of the area.
18. In its favour, the scheme would contribute to the Council's housing supply, but given that it would deliver only two units, and that the PAS would deliver a similar quantity, I attribute only limited weight to that benefit. There would also be limited benefits to the economy during construction, and as a result of biodiversity net gain.

Planning Balance and Conclusion

19. Summing up, I have found that the scheme would conflict with the spatial strategy for the area which seeks to direct housing to locations in urban areas and

² NK/2025/0006

settlements with easier and more sustainable access to services and facilities. In that regard, its impact would be similar to the fallback of the PAS.

20. However, compared to the PAS, this proposal would have a significantly more harmful impact on the character and appearance of the area. In regard to this harmful impact, it would conflict with the development plan.
21. The scheme's limited public benefits would not outweigh the significant harm that it would cause. Having regard to Framework Policy S5(4), the scheme's limited benefits and the fallback of the PAS, do not amount to exceptional circumstances which would substantially outweigh its adverse effects on the character of the countryside.
22. The scheme would conflict with the development plan, and material considerations, including the Framework, do not indicate that the appeal should be decided other than in accordance with it.
23. For these reasons, and having regard to all other matters raised, including representations by interested parties, the appeal is dismissed.

Chris Couper

INSPECTOR